

UNITED STATES DEPARTMENT OF AGRICULTURE
BEFORE THE SECRETARY OF AGRICULTURE

In re:

Melvin Beiler, an individual,

Respondent.

AWA Docket No. 26-J-0015

COMPLAINT

There is reason to believe that the Respondent named herein has willfully violated the Animal Welfare Act, as amended (7 U.S.C. § 2131 *et seq.*) (AWA or Act), and the regulations (9 C.F.R. Part 2 and 3) (Regulations and Standards). Therefore, the Administrator of the Animal and Plant Health Inspection Service (APHIS) issues this Complaint alleging the following:

JURISDICTIONAL ALLEGATIONS

1. Respondent Melvin Beiler (herein after “Respondent”) is an individual whose address is in the Commonwealth of Pennsylvania.
2. Respondent’s address will not be provided in the complaint to protect his personal privacy but will be provided to the Hearing Clerk, United States Department of Agriculture, for the purpose of service of this complaint and future documents.
3. At all times mentioned herein, the Respondent operated as a Dealer, as that term is used in the Act and the Regulations, and held AWA license 23-A-0660.

ALLEGED VIOLATIONS

1. On or about February 10, 2021, the Respondent willfully violated the Regulations (9 C.F.R. § 2.100(a)), by failing to meet the Standards, as follows: Throughout the guinea pig enclosure there was buildup of dust, debris, and spiderwebs, in violation of 9 C.F.R § 3.31(b).

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2. On or about August 25, 2021, the Respondent willfully violated the Regulations (9 C.F.R. § 2.40) by failing to provide adequate veterinary care to animals and/or failing to establish and maintain programs of adequate veterinary care that included appropriate methods to prevent, control, diagnose, and treat diseases and injuries, and/or daily observation of animals, as follows:

(a) A brown and black guinea pig in pen thirty-one (31) had a firm movable mass approximately one (1) inch in size under the chin, in violation of 9 C.F.R. § 2.40(b)(2).

(b) A grey guinea pig in pen twenty-five (25) had a firm movable mass approximately one (1) inch in size under the chin, in violation of 9 C.F.R. § 2.40(b)(2).

3. On or about August 25, 2021, the Respondent willfully violated the Regulations (9 C.F.R. § 2.100(a)), by failing to meet the Standards, as follows: Two (2) self-feeders in pens forty-three (43) and ten (10) contained sharp points on the lower lip, in violation of 9 C.F.R. § 3.28(a)(1).

4. On or about February 16, 2022, the Respondent willfully violated the Regulations (9 C.F.R. § 2.100(a)), by failing to meet the Standards, as follows: Respondent failed to make a responsible adult available to accompany APHIS officials during the inspection process, in violation of 9 C.F.R. § 2.126(b).

5. On or about March 18, 2022, the Respondent willfully violated the Regulations (9 C.F.R. § 2.100(a)), by failing to meet the Standards, as follows: Respondent allowed the released of approximately fifty (50) guinea pigs into the woods nearby during low temperatures between approximately twenty (20) and thirty (30) degrees Fahrenheit, in violation of 9 C.F.R. § 2.131(b)(1).

6. On or about June 8, 2022, the Respondent willfully violated the Regulations (9 C.F.R. § 2.100(a)), by failing to meet the Standards, as follows: Respondent failed to make a responsible adult available to accompany APHIS officials during the inspection process, in violation of 9 C.F.R. § 2.126(b).

7. On or about January 27, 2023, the Respondent willfully violated the Regulations (9 C.F.R. § 2.100(a)), by failing to meet the Standards, as follows: The metal self-feeder in pen sixteen (16) contained sharp points on the lower lip, in violation of 9 C.F.R § 3.28(a)(1).

WHEREFORE, it is hereby ordered that for the purpose of determining whether the Respondent has, in fact, violated the Act and Regulations promulgated thereunder, this Complaint shall be served upon the Respondent. Respondent shall have twenty (20) days after service of this Complaint in which to file an answer with the Hearing Clerk, United States Department of Agriculture, Washington, D.C. 20250-1400, in accordance with the applicable Rules of Practice (7 C.F.R. § 1.136). Failure to deny or otherwise respond to any allegation in this complaint shall constitute an admission of the allegation. Failure to file an answer within the prescribed time shall constitute an admission of the allegations in this complaint and a waiver of hearing. APHIS requests that this matter proceed in accordance with the Rules of Practice governing proceedings under the Act, and that such order or orders be issued as are authorized by the Act (7 U.S.C. § 2149) and warranted under the circumstances.

Done at Washington, D.C.
this ____ day of ____ 2026

Kelly L. Moore

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MOORE
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Kelly Moore
Acting Administrator
Animal and Plant Health Inspection Service

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